WICKNELL MUNODAANI CHIVAYO
versus
SONJA LOUISE MADZIKANDA

HIGH COURT OF ZIMBABWE
MAXWELL J
HARARE, 2 June 2026 and 18 June 2026

Opposed Matter

Dismissal of action in terms of rule 31(1) of the High Court rules 2021

S.M. Hashiti and E Mubaiwa for the applicant
R. Mabwe, for the respondent

MAXWELL J

After considering submissions from counsels for both parties, and the history of this matter, I find that the application is a veiled attempt to get the assistance of the court to defeat an extant order by consent. I say so for the following reasons.

On 4 March 2026, Applicant filed an Urgent Chamber Application for Access to Minor Children Pending Resolution of HCH62/26. The application was referenced HCHF 892/26. The order sought therein was only on the issue of access to and the manner and times of such access to the minor children born to the parties. On the second April 2026 an order by consent was granted by Honourable Justice TSANGA J. It was issued on 7 April 2026. Apart from the issues of access of the minor children, the order shows that the parties agreed on how to proceed on the dispute between them. Paragraph 1 of the order by consent is couched in the following terms;

> "1. The question of the proprietary consequences of the termination of the parties union shall be adjudicated under case number HCHF 62/2026."

In an obvious attempt to resile from the agreement that the proprietary consequences of the termination of the parties union shall be adjudicated under case number HCHF 62/2026, Applicant filed the present application on 27 April 2026. He seeks the dismissal of all claims relating to the division of assets, dissolution of marriage, spousal maintenance and a declaration of the existence and consequent dissolution of a civil partnership. I am of the

view that the present application seeks to achieve a result that defeats the agreement reached by the parties resulting in the order by consent issued by Honourable TSANGA J. The effect of that order is that the parties must litigate under HCHF 62/26 the proprietary issues between them. It is trite that once a court has made an order, it binds all and sundry concerned. Everyone is bound by the court order until it is lawfully altered or discharged by a court of competent jurisdiction or statute. See *Mauritius and Anor* v *Versapark Holdings (Pvt) Ltd and Anor* SC 2/2022. Applicant did not address or refer to the existence of the order in HCHF 892/26. I take it as an attempt to pull wool over the court's eyes. A position that is not consistent with the adjudication of the proprietary issues between the parties under case number HCHF 62/2026 cannot be supposed by the court. It is trite that no person can be allowed to take up two positions that are inconsistent with one another, commonly expressed as to blow hot and cold, to approbate and reprobate. See *Hlatshwayo* v *Mare and Deas* 1912 AD 242 @ 259.

Therefore, while r 31(1) of the High Court rules 2021 allows defendant who has filed a plea to make an application for the dismissal of the action on the ground that it is *frivolous or vexatious*, I am of the view that applicant compromised his right by consenting that the proprietary issues be determined in case number HCHF 62/26. I am also of the view that r 31(1) was not applicable in the circumstances of this case. The heading of r 31 is

> "Application for dismissal of action."

I take it to mean that this is an application that should be made where the whole action is bound to be dismissed by reason of being frivolous or vexations. Paragraph (a) of Rule 31(1) provides that the court may

> "(a) grant the application in which event it shall dismiss the action and enter judgment of absolution from the instance."

It is trite that in considering whether to grant absolution from the instance, the court must ask itself if there is no evidence at all on each and every essential avernment that the plaintiff must make to sustain the cause of action. See *Gaibie & Anor* v *Castanheira & Anor* SC 58/20. In my view, a r 31(1) application is not for circumstances in which part of the claim is valid. In *casu* applicant is not challenging the validity of the claims for custody and maintenance. The parties are also giving different views on the applicability of the Marriages Act [*Chapter 5:17*] to their circumstances. Respondent is even seeking recourse from the Constitution. I am not persuaded that the summons can be termed totally hopeless to warrant dismissal.

For the above reasons, the application fails. I make the following order:

The application be and is hereby dismissed with costs.

MAXWELL J:……..

Mpofu Mazhata Chambers, Applicant's Legal Practitioners
Mahuni Gidiri Law Chambers, Respondent's Legal Practitioners